SCHEME OF AMALGAMATION

OF

INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

(Transferor Company)

WITH

INDO BORAX & CHEMICALS LIMITED

(Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS

(Under section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 and rules made thereunder)

SECTION I | INTRODUCTION

1. BACKGROUND AND DESCRIPTION OF THE COMPANIES WHO ARE PARTIES TO THE SCHEME

1.1 **Indoborax Infrastructure Private Limited**, (**the "Transferor Company"**), is a Private Limited Company, incorporated on December 03, 2009 under the provisions of the Companies Act, 1956 having Corporate Identity Number (CIN) U45400MH2009PTC197583. The registered office of the Company is presently situated at Tulsiani Chambers, 506, 5th Floor, Free press Journal Marg, Nariman Point, Mumbai, Maharashtra, India, 400021. The Transferor Company is in the business of construction of residential units & real estate activities.

1.2 **Indo Borax & Chemicals Limited**, (**the "Transferee Company"**), is a Public Limited Company, incorporated on September 23, 1980 under the provisions of the Companies Act, 1956 having Corporate Identity Number (CIN) is L24100MH1980PLC023177. The registered office of the Company is presently situated at Tulsiani Chambers, 506, 5th Floor, Free press Journal Marg, Nariman Point, Mumbai, Maharashtra, India, 400021. The Transferee Company is in the business of manufacturing of chemical products which include Boric Acid Technical Grade Powder & Granular, Boric Acid IP Grade (Indian Pharmacopoeia Grade), Di-Sodium Octaborate Tetrabydrate (DOT), Boron Oxide and Lithium Hydroxide Monohydrate. The Equity shares of Transferee Company are listed on BSE Limited (**"BSE"**) and National Stock Exchange of India Limited (**"NSE"**).

2. PREAMBLE

2.1 This Scheme of Amalgamation (*as defined hereinafter*) seeks to amalgamate and consolidate the business of the Transferor Company, which is a wholly owned subsidiary of the Transferee Company, with and into the Transferee Company (together, the **"Amalgamating Company"**) pursuant to the provisions of Section 2 (6) of the IT Act (*as defined hereinafter*), Sections 230 - 232 and other applicable provisions of the Act (*as defined hereinafter*), the SEBI Circular (*as defined hereinafter*), the Listing Regulations (*as defined hereinafter*), and Applicable Law (*as defined hereinafter*).

2.2 The Board of Directors(s) of the Amalgamating Company has resolved that the amalgamation of Transferor Company with and into the Transferee Company would be in the best interests of the Amalgamating Company and their respective shareholders, creditors, employees and other stakeholders.

2.3 Upon the amalgamation of the Transferor Company into the Transferee Company and on and from the Effective Date (*as defined hereinafter*), all the equity shares issued by the Transferor Company and held by the Transferee Company and / or its nominees shall stand cancelled and extinguished and the same shall be effected as a part of the Scheme and not in accordance with Section 66 of the Act and in lieu thereof, there shall be no allotment of equity shares by the Transferee Company.

2.4 The amalgamation of the Transferor Company with the Transferee Company will be effective from the Appointed Date (*as defined hereinafter*).

2.5 This Scheme presented under Sections 230 - 232 of the Act for the amalgamation of the Transferor Company with the Transferee Company is divided into the following sections:

SECTION I: Deals with the overview of the Scheme and defined terms used in this Scheme.

SECTION II: Deals with the share capital details of each of the Transferor Company and the Transferee Company.

SECTION III: Deals with amalgamation of the Transferor Company with and into the Transferee Company and sets forth certain additional arrangements that form a part of this Scheme.

SECTION IV: Deals with the general terms and conditions applicable to this Scheme.

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Director

For Indo Borax & Chemicals Ltd

Company Secretary

3. RATIONALE AND PURPOSE OF THE SCHEME:

The Amalgamation would result inter-alia the following benefits to Transferor and Transferee Company and their respective shareholders:

i. *Efficiency in business operations*: The proposed amalgamation of the Transferor Company with the Transferee Company is expected to create greater efficiency due to pooling and more effective utilisation of the combined resources of the said companies, reduction in overheads, costs and expenses, economies of scale, elimination of duplication of work and rationalization and reduction of compliance requirements.

ii. *Management focus*: The proposed amalgamation of the Transferor Company with the Transferee Company will create concentrated management focus and integration with uniform management procedures and seamless implementation of policy changes.

iii. *Streamlining of group structure and benefit of combined resources:* The proposed amalgamation will enable unified management and administration of the combined business under a single corporate entity, resulting in streamlined governance, improved coordination, faster decision-making, uniform implementation of business policies and more efficient management oversight.

iv. *Simplification of Financial Reporting:* The proposed amalgamation will eliminate the requirement for preparation of consolidated financial statements by the Transferee Company in respect of the Transferor Company, thereby simplifying the financial reporting process, reducing the associated accounting and audit efforts and resulting in cost efficiencies.

4. DEFINITIONS:

4.1 In this Scheme, unless inconsistent with the subject or context, the following expressions have the meanings as set out herein below:

The "**Act**" means the Companies Act, 2013 and the rules and regulations made thereunder and shall include any statutory modifications, re-enactment or amendment thereof for the time being in force and includes the Companies Act, 1956 (to the extent applicable);

"**Amalgamating Companies**" has the meaning ascribed to such term in Clause 2.1 of Section I (*Introduction*) of this Scheme;

"**Applicable Law**" means any applicable national, foreign, provincial, local or other law including applicable provisions of all: (i) constitutions, decrees, treaties, statutes, enactments, laws (including the common law), bye-laws, codes, notifications, rules, regulations, policies, guidelines, circulars, clearances, approvals, directions, directives, ordinances, administrative interpretation or orders of any Governmental Authority, statutory authority, court, Competent Authority; (ii) Permits; and (iii) orders, decisions, writs, injunctions, judgments, awards, administrative interpretation, and decrees of, or agreements with, any Governmental Authority having jurisdiction over the Amalgamating Company in each case having the force of law and that is binding or applicable to any of the Amalgamating Company as may be in force from time to time;

"**Appointed Date**" means the 1st day of April, 2026 or such other date as the Hon'ble National Company Law Tribunal, Mumbai Bench may otherwise direct/ fix.

"**Board**" means the Board of Directors of the Transferor Company and / or the Transferee Company, as the case may be, and unless it is repugnant to the context or otherwise, shall include a committee, if any, of the Board constituted for the implementation of this Scheme.

"**BSE**" means BSE Limited;

"**Competent Authority**" means the relevant National Company Law Tribunal, Mumbai Bench having jurisdiction over the Transferor Company and the Transferee Company respectively;

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"**Effective Date**" means the opening business hours of the first day of the month immediately succeeding the month in which the last of the conditions specified in Clause 20 of Section IV | (*General Terms and Conditions*) of this Scheme are fulfilled, obtained or otherwise duly waived. References in this Scheme to "coming into effect of this Scheme" or "effectiveness of the Scheme" or "effect of the Scheme" or "upon the Scheme becoming effective," shall mean the "Effective Date";

"**Encumbrance**" means: (i) any encumbrance including, without limitation, any claim, mortgage, negative lien, pledge, equitable interest, charge (whether fixed or floating), hypothecation, lien, deposit by way of security, security interest, trust, guarantee, commitment, assignment by way of security, or other encumbrances or security interest of any kind securing or conferring any priority of payment in respect of any obligation of any person and includes without limitation any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security in each case under any law, contract or otherwise, including any option or right of pre-emption, public right, common right, easement rights, any attachment, restriction on use, transfer, receipt of income or exercise of any other attribute of ownership, right of set-off and/ or any other interest held by a third party; (ii) any voting agreement, conditional sale contracts, interest, option, right of first offer or transfer restriction; (iii) any adverse claim as to title, possession or use; and / or (iv) any agreement, conditional or otherwise, to create any of the foregoing, and the term 'encumber' shall be construed accordingly;

"**Governmental Authority**" means: (i) the government of any jurisdiction (including any national, state, municipal or local government or any political or administrative subdivision thereof) and any department, ministry, agency, instrumentality, court, tribunals, central bank, commission or other authority thereof; (ii) any governmental, quasi-governmental or private body, self-regulatory organisation, or agency lawfully exercising, or entitled to exercise, any administrative, executive, judicial, legislative, regulatory, statutory, licensing, competition, tax, importing, exporting or other governmental or quasi-governmental authority; and (iii) the Competent Authority;

"**IT Act**" means the Income-tax Act, 2025, as may be applicable, including any statutory modifications, re-enactments or amendments thereof, for the time being in force, read with the relevant rules, regulations and/or circulars issued thereunder.

"**Indian Accounting Standards**" means the applicable accounting principles as prescribed under the Companies (Indian Accounting Standards) Rules, 2015 and shall include any statutory modifications, re-enactments or amendments thereof;

"Intellectual Property Rights" means all intellectual property rights, including with respect to all patents, patent applications, and trademarks, service marks, trade names, logos, corporate names, brand names, domain names, all copyrights, designs, and all registrations, applications and renewals in connection therewith, and software and all website content (including text, graphics, images, audio, video and data), trade secrets, confidential business information and other proprietary information;

"**Listing Regulations**" means the SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015, and includes all amendments or statutory modifications thereto or re-enactments thereof;

"**NSE**" means the National Stock Exchange of India Limited;

"NCLT" means the Hon'ble National Company Law Tribunal, Mumbai Bench, which has jurisdiction in relation to the Companies;

"**Permits**" means all consents, licences, permits, certificates, permissions, authorisations, clarifications, approvals, clearances, confirmations, declarations, waivers, exemptions, registrations, filings, no objections, whether governmental, statutory or regulatory, including application(s) for renewal thereof, as required under Applicable Law;

"Re." means Rupee being the lawful currency of the Republic of India;

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"Rs." means Rupees being the lawful currency of the Republic of India;

"**ROC**" means the Registrar of Companies, Mumbai-I which has jurisdiction over both the Transferor Company and Transferee Company.

"**Scheme**" or "**the Scheme**" or "**this Scheme**" means this Scheme of Amalgamation in its present form pursuant to Sections 230 - 232 and other relevant provisions of the Act, read with the SEBI Circular, as approved by the Board of Directors of the Transferor Company and the Transferee Company, subject to any modification(s) thereto as may be approved or imposed or directed by the NCLT or any modification(s) sought by the Companies, as confirmed/approved by the NCLT;

Any references in the Scheme to the words "upon the Scheme becoming effective" or "effectiveness of the Scheme" or "date of coming into effect of the Scheme" or "Scheme coming into effect" shall mean the Effective Date.

"SEBI" means the Securities and Exchange Board of India;

"SEBI Circular" means the Master Circular No. SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated June 20, 2023 issued by the SEBI;

"Stock Exchanges" means the National Stock Exchange of India Limited and the BSE Limited;

"**Transferee Company**" has the meaning ascribed to it in Clause 1.2 of Section I (*Introduction*) of this Scheme; and

"**Transferor Company**" has the meaning ascribed to it in Clause 1.1 of Section I (*Introduction*) of this Scheme and, notwithstanding anything to the contrary in this Scheme shall include:

"**Undertaking**" of the Transferor Company shall means and includes:

(a) all assets whether movable or immovable, whether tangible or intangible (including all Intellectual Property Rights, if any) whether leasehold or freehold, equipment including without limitation all rights, title, interests, claims, covenants and undertakings of the Transferor Company in such assets;

(b) all investments, receivables, loans, security deposits and advances extended, earnest monies, advance rentals, payments against warrants, if any, or other rights or entitlements, including without limitation accrued interest thereon, of the Transferor Company;

(c) all the debts, borrowings, liabilities, contingent liabilities, duties, obligations and guarantees whether present or future, whether secured or unsecured, if any, of the Transferor Company as on the Appointed Date (hereinafter referred to as "the said liabilities");

(d) all registrations, trademarks, trade names, computer programmes, websites, manuals, data, service marks, copyrights, patents, designs, domain names, applications for trademarks, trade names, service marks, copyrights, designs and domain names exclusively used by or held for use by the Transferor Company in the business, activities and operations carried on by the Transferor Company; and

(e) all permits, rights, entitlements, licenses, approvals (including licenses and approvals from any Governmental Authority), grants, allotments, recommendations, clearances and tenancies of the Transferor Company;

(f) all contracts, agreements, licenses, leases, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, letters of agreed points, bids, letters of intent, arrangements, undertakings, whether written or otherwise, deeds, bonds, schemes, arrangements, service agreements, sales orders, purchase orders, operation and maintenance compliance, equipment purchase agreements or other instruments of

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whatsoever nature to which the Transferor Company is a party, and other assurances in favour of the Transferor Company or powers or authorisations granted by or to it;

(g) all insurance policies;

(h) all books, records, files, papers, governance templates and process information, records of standard operating procedures, computer programmes along with their licenses, manuals and backup copies, advertising materials, and other data and records whether in physical or electronic form, directly or indirectly in connection with or relating to the Transferor Company;

(i) any and all earnest monies and/ or security deposits, or other entitlements in connection with or relating to the Transferor Company;

(j) all rights to use and avail telephone, facsimile, e-mail, internet, leased line, connection and installations, utilities, electricity and other services;

(k) all legal or other proceedings (including before any statutory or quasi-judicial authority or tribunal), of whatsoever nature, by or against the Transferor Company;

(l) any and all of its staff and employees, who are on its payroils, including those employed at its offices and branches, employees/personnel engaged on contract basis and contract labourers and interns / trainees, as are primarily engaged in or in relation to the business, activities and operations carried on by the Transferor Company, including liabilities of the Transferor Company, with regard to their staff and employees, with respect to the payment of gratuity, superannuation, pension benefits and provident fund or other compensation or benefits, if any, whether in the event of resignation, death, retirement, retrenchment or otherwise, in terms of its license, at its respective offices, branches or otherwise, and any other employees/personnel and contract labourers and interns / trainees hired by the Transferor Company as on the Effective Date;

(m) all benefits including grants, tax credits (including but not limited to credits in respect of Income Tax, goods and service tax, sales tax, value added tax, service tax etc.) tax refunds, MAT Credit Entitlement, if any under the Income Tax Act, Sales Tax, Custom duties and Goods & Service Tax or any other or like benefits, if any to which the Transferor Company is entitled to, in terms of the applicable tax Laws of the Union and State Governments; and

(n) any other assets and liabilities.

5. INTERPRETATION

In this Scheme, unless the context otherwise requires:

(a) the words "including", "include" or "includes" shall be interpreted in a manner as though the words "without limitation" immediately followed the same;

(b) any document or agreement includes a reference to that document or agreement as varied, amended, supplemented, substituted, novated or assigned, from time to time, in accordance with the provisions of such a document or agreement;

(c) the words "other", "or otherwise" and "whatsoever" shall not be construed *ejusdem generis* or be construed as any limitation upon the generality of any preceding words or matters specifically referred to;

(d) headings are inserted for ease of reference only and shall not affect the construction or interpretation of the relevant provisions of this Scheme;

(e) the term "Clause" or "Sub-Clause" refers to the specified clause of this Scheme, as the case may be;

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(f) reference to any legislation, statute, regulation, rule, notification, or any other provision of law means and includes references to such legal provisions as amended, supplemented or re-enacted from time to time, and any reference to legislation or Statute includes any sub-ordinate legislation made from time to time under such a legislation or statute and regulations, rules, notifications or circulars issued under such a legislation or statute;

(g) words denoting the singular shall include the plural and vice versa;

(h) unless otherwise defined, the reference to the word "days" shall mean calendar days; and

(i) reference to dates and times shall be construed to be reference to Indian dates and times.

6. DATE OF COMING INTO EFFECT AND OPERATIVE DATE:

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Competent Authority or any other Governmental Authority shall be effective from the Appointed Date (including for all regulatory and IT Act purposes) but shall be operative from the Effective Date.

SECTION II | SHARE CAPITAL DETAILS

7. SHARE CAPITAL

7.1 The authorised, issued, subscribed and paid-up share capital of Transferor Company as on appointed date is as under:

Particulars	Amount (Rs.)
Authorised Capital	
2,50,000 Equity Shares of Rs.10/- each	25,00,000
Total	**25,00,000**
Issued, subscribed and paid-up share capital	
1,10,000 Equity Shares of Rs.10/- each	11,00,000
Total	**11,00,000**

The entire subscribed & paid-up share capital of Transferor Company is held by Transferee Company as on the appointed date in terms of definition of "Subsidiary" under Section 2(87) of the Act.

Subsequent to the appointed date and up to the date of approval of this Scheme by the Board of Directors of Transferor Company, there has been no change in the authorized, issued, subscribed and paid-up share capital of Transferor Company.

7.2 The authorised, issued, subscribed and paid-up share capital of Transferee Company as on appointed date is as under:

Particulars	Amount (Rs.)
Authorised Capital	
6,00,00,000 Equity Shares of Re. 1/- each	6,00,00,000
Total	**6,00,00,000**
Issued share capital	
3,22,80,000 Equity Shares of Re.1/- each	3,22,80,000
Total	**3,22,80,000**

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Subscribed and paid-up share capital	
3,20,90,000 Equity Shares of Re. 1/- each	3,20,90,000
Total	**3,20,90,000**

***Note**: The difference between the issued share capital and the subscribed and paid-up share capital is on account of forfeiture of equity shares in accordance with applicable law.*

The equity shares of the Transferee Company are listed on the Stock Exchanges.

The Transferee Company has granted Stock Options to its employees which remain unexercised as on the date of this Scheme and subject to conditions of the ESOP Scheme and other vesting conditions, they may be exercised before the Effective Date, which may result in an increase in the issued and paid-up share capital of the Transferee Company.

Subsequent to appointed date and up to the date of approval of this Scheme by the Board of Directors of Transferee Company, there has been no change in the authorised, issued, subscribed and paid-up share capital of Transferee Company.

SECTION III | AMALGAMATION OF THE TRANSFEROR COMPANY WITH AND INTO THE TRANSFEREE COMPANY

8. TRANSFER AND VESTING OF THE UNDERTAKING OF THE TRANSFEROR COMPANY INTO TRANSFEREE COMPANY

8.1 With effect from the opening of the business as on the Appointed Date and subject to the provisions of the Scheme, the entire undertaking of the transferor Company including their assets and liabilities as on the Appointed Date, shall pursuant to applicable provisions of the Act, without any further act, instrument or deed, be and shall stand transferred to and vested in and/or deemed to have been transferred to and vested in the transferee company as a going concern subject, however, to all charges, liens, mortgages, if any, then affecting the same or any part thereof.

PROVIDED ALWAYS that the Scheme shall not operate to enlarge the security for any loan, deposit or facility created by or available to the Transferor Company and which shall vest in the Transferee Company by virtue of Amalgamation, and the Transferee Company shall not be obliged to create any further or additional security thereof after the Effective Date or otherwise.

8.2 The entire business of the Transferor Company and all the properties whether movable or immovable, real or personal, corporeal or incorporeal, present or contingent including but without being limited to all assets, authorised capital, fixed assets, capital work-in-progress, current asset and debtors, investments, rights, claims and powers, authorities, allotments, approval and consents, reserves, provisions, permits, ownership rights, lease, tenancy rights, occupancy rights, incentives, claims, rehabilitation schemes, funds, quota rights, import quotas, licenses, registration, contracts, engagements, arrangements, brands, logos, patents, trade names, trademarks, copy rights, all other intellectual property rights, other intangibles of the Transferor Company whether registered or unregistered or any variation thereof as a part of its name or in a style of business otherwise, other industrial rights and licenses in respect thereof, lease, tenancy rights, flats, telephones, telexes, facsimile, connections, e-mail connections, internet connections, websites, installations and utilities, benefits of agreements and arrangements, powers, authorities, permits, allotments, approvals, sanctions, permissions, consents, privileges, liberties, easements, other assets, special status and other benefits that have accrued or which may accrue to the Transferor Company on and from the Appointed Date and prior to the Effective Date in connection with or in relation of the operation of the Undertaking and all rights, titles, interest, benefits, facilities and advantages of whatsoever nature and wherever situated belonging to or in the possession of or granted in favour of or enjoyed by the Transferor Company as on the Appointed Date shall, pursuant to the applicable provisions of the Act, without any further act, instrument or deed, be and stand transferred to and vested in or deemed to be transferred to and vested in the Transferee Company.

a. With effect from the Appointed Date, all the equity shares, debentures, bonds, notes or other securities held by the Transferor Company, whether convertible in equity or not and whether

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quoted or not shall, without any further act or deed, be and stand transferred to the Transferee Company has also all the movable assets including cash in hand, if any, of the Transferor Company shall be capable of passing by manual delivery or by endorsement and delivery, as the case may be, to the Transferee Company to the end and intent that the property therein passes to the Transferee Company on such manual delivery or by endorsement and delivery.

b. In respect of movable properties other than specified in Clause 8.2 (a) above, including sundry debtors, outstanding loans and advances, if any recoverable in cash or in kind or for value to be received, bank balances and deposits, if any, with government, semi government, local and other authorities and bodies, the Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if required, under any law or otherwise, give notice in such form as it may deem fit and proper to each person, debtor or depositor, as the case may be, that pursuant to the Central Government or Tribunal in case of any reference by Central Government to the Tribunal having sanctioned the Scheme, the said debts, loans, advances or deposits be paid or made good or held on account of the Transferee Company as the person entitled thereto to the end and intent that the right of the Transferor Company to recover or realize all such debts, deposits and advances (including the debts payable by such persons, debtor or deposit to the Transferor Company) stand transferred and assigned to the Transferee Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

8.3 With effect from the Appointed Date, all the debts, secured or unsecured, liabilities, duties and obligations of every kind, nature and description of the Transferor Company shall also under the applicable provisions of the Act, without any further act or deed be transferred to or be deemed to be transferred to the Transferee Company so as to become as and from the Appointed Date, the debts secured or unsecured, liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company and further that it shall not be necessary to obtain the consent of any third party or any other person who is a party to the contract or arrangement by virtue of which such debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this clause.

8.4 It is clarified that all debts, loans and liabilities, duties and obligations of the Transferor Company as on the Appointed Date and all other liabilities which may accrue or arise after the Appointed Date but which relate to the period on or upto the day of the Appointed Date shall be the debts, loans and liabilities, duties and obligations of the Transferee Company including any encumbrance on the assets of the Transferor Company or on any income earned from those assets.

8.5 It is further specifically clarified, admitted, assured and declared by the Transferee Company that on or after this Scheme becoming effective, it will take over, absorb and pay and discharge on due dates all the liabilities including liabilities for income tax, wealth tax, central sales tax, value-added tax, services tax, goods and services tax, excise duty, custom duty, fringe benefit tax, dividend distribution tax, if any, of the Transferor Company.

8.6 With effect from the Appointed Date all the debts, liabilities, dues, duties and obligations, including all income tax, wealth tax, central sales tax, value-added tax, services tax, goods and services tax, excise duty, custom duty, fringe benefit tax, dividend distribution tax and other Government and Semi-Government and Statutory liabilities of the Transferor Company shall pursuant to the applicable provisions of the Act and without any further act or deed be also transferred or be deemed to be transferred to and vest in and be assumed by the Transferee Company so as to become as from the Appointed Date the debts, liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the respective Transferor Company.

9. CONTRACTS, BONDS AND OTHER INSTRUMENTS

Subject to other provisions contained in the Scheme, all contracts, bonds, agreements (including in connection with contracts for services),indentures and other instruments to which the Transferor Company is party subsisting or having effect immediately before the Effective Date shall remain in full force and effect against or in favour of the Transferee Company, as the case may be, and may be enforced as fully and as effectually as if, instead of the Transferor Company, the Transferee Company had been a party thereto. All other agreements entered into by the respective Transferor

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Companies in connection with the assets of the Undertakings of the Transferor Companies shall stand automatically transferred in favour of the Transferee Company on the same terms and conditions without any further act, instrument, deed, matter or thing being made, done or executed.

10. LEGAL PROCEEDINGS

All legal proceedings, including quasi-judicial, arbitral and other administrative proceedings, if any of whatsoever nature by or against the Transferor Company are pending on the Effective Date, the same shall not abate or be discontinued or in any way be prejudicially affected by reasons of the amalgamation of the Transferor Company with the Transferee Company or anything contained in this Scheme, but the Proceedings may be continued, prosecuted and enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as the same would or might have been continued, prosecuted and enforced by or against the Transferor Company, in the absence of the Scheme.

11. TRANSFEROR COMPANY'S STAFF, WORKMEN AND EMPLOYEES

11.1 All the staff, workmen and other employees of the Transferor Company, who are in service on the date immediately preceding the date on which the Scheme finally takes effect, (i.e. the Effective Date) shall on and from the Effective Date and with effect from the Appointed Date, become and be engaged as the employees of the Transferee Company, without any break or interruption in service as a result of the transfer and on terms and conditions not less favorable than those on which they are engaged by the Transferor Company immediately preceding the Effective Date. Services of the employees of the Transferor Company shall be taken into account from the date of their respective appointment with the Transferor Company for the purposes of all the retirement benefits and all other entitlements for which they may be eligible. For the purpose of payment of any retrenchment compensation, if any, such past services with the Transferor Company shall also be taken into account.

11.2 On and from the Effective Date and with effect from the Appointed Date, the services of the employees of the Transferor Company will be treated as having been continuous, without any break, discontinuance or interruption, for the purpose of membership and the application of the rules or bye-laws of provident fund or gratuity fund or pension fund or superannuation fund or other statutory purposes as the case may be.

11.3 It is expressly provided that, on the Scheme becoming effective and with effect from the Appointed Date, the provident fund, gratuity fund, pension fund, superannuation fund or any other special fund or trusts created or existing for the benefit of the staff, workmen and other employees of the Transferor Company shall become trusts/funds of the Transferee Company for all purposes whatsoever in relation to the administration or operation of such funds or trusts or in relation to the obligation to make contributions to the said funds or trusts in accordance with the provisions thereof as per the terms provided in the respective trust deeds or other documents, if any. It is the aim, and intent of the Scheme that all rights, duties, powers and obligations of the Transferor Company in relation to such funds or trusts shall become those of the Transferee Company. It is clarified that the services of the staff, workmen and employees of the Transferor Company which are employed with the Transferee Company will be treated as having been continuous for the purpose of the said fund or funds. The trustees including the Board of Directors of the Transferor Company and the Transferee Company or through any committee / person duly authorized by the Board of Directors in this regard shall be entitled to adopt such course of action in this regard as may be advised provided however that there shall be no discontinuation or breakage in the services of the employees of the Transferor Company.

12. CONTRACTS, DEEDS, BONDS, APPROVALS AND OTHER INSTRUMENTS

12.1 For avoidance of doubt and without prejudice to the generality of Clause 9 above, it is clarified that upon the coming into effect of this Scheme and with effect from the Appointed Date and subject to the provisions of this Scheme and without any further act of the parties, all memorandum of understanding, contracts (including but not limited to the agreements with respect to the immovable properties by way of lease, license and business arrangements), deeds, bonds, agreements, arrangements, incentives, engagements, registrations, schemes, assurances, licences,

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Company Secretary

insurance policies, guarantees, and other instruments (including all tenancies, leases, and other assurances in favour of the Transferor Company or powers or authorities granted by or to it)of whatsoever nature to which the Transferor Company is a party or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before the Effective Date, shall continue in full force and effect against or in favour of the Transferee Company as the case may be, and may be enforced as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obligee or obligor thereto.

12.2 It is hereby clarified that by virtue of the provisions of the Scheme and pursuant to the order of the Appropriate Authority confirming the Scheme, upon the Scheme coming into effect, all rights, services, obligations, liabilities, responsibilities undertaken by or in favour of the Transferor Company under any contractual arrangements shall automatically stand transferred to and vested in and/ or shall be deemed to have been transferred to and vested in the Transferee Company and all benefits to which the Transferor Company is entitled to shall be available to and vested in and/ or shall be deemed to have been available to and vested in the Transferee Company, as a successor-in-interest and the Transferee Company shall be entitled to deal with the same in place and stead of the Transferor Company, as if the same were originally performed or conferred upon or given or issued to or executed in favour of the Transferee Company, and the rights and benefits under the same will be available to the Transferee Company, without any further act or deed. The Transferee Company shall discharge its obligation in respect of the services to be performed/ provided or in respect of payment of service charges under any contractual arrangements instead of the Transferor Company.

12.3 Without prejudice to the above, the Transferee Company shall, if so desirable or required or become necessary, upon the coming into effect of this Scheme and with effect from the Appointed Date, enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite arrangements, to which the Transferor Company will, if necessary, also be party in order to give formal effect to the provisions of this Scheme and to the extent that the Transferor Company are required prior to the Effective Date to join in such deeds, writings or confirmations, the Transferee Company shall be entitled to act for and on behalf of and in the name of the Transferor Company, as the case may be. Further, the Transferee Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company to give effect to the provisions of this Scheme.

13. PROFITS, DIVIDENDS, BONUS / RIGHTS SHARES

13.1 With effect from the Appointed Date, the Transferor Company shall not without the prior written consent of the Transferee Company, utilize the profits, if any, for declaring or paying of any dividend to its shareholders and shall also not utilize, adjust or claim adjustment of profits/ reserves, as the case may be earned/ incurred or suffered after the Appointed Date.

13.2 The Transferor Company shall not after the Appointed Date, issue or allot any further securities, by way of rights or bonus or otherwise without the prior written consent of the Board of Directors of the Transferee Company.

14. SAVING OF CONCLUDED TRANSACTIONS

Subject to the terms of this Scheme, the transfer and vesting of the entire Undertaking of the Transferor Company under this Scheme, shall not affect any transaction or proceedings already concluded by the Transferor Company on or before the Appointed Date or concluded between the Appointed Date and the Effective Date (both days inclusive), to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things made, done and executed by the Transferor Company as acts, deeds and things made, done and executed by or on behalf of the Transferee Company.

For INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

Director

For Indo Borax & Chemicals Ltd

Company Secretary

15. CONDUCT OF BUSINESS TILL EFFECTIVE DATE

Unless otherwise stated hereunder, with effect from the Appointed Date and up to the Effective Date:

15.1 The Transferor Company shall carry on and shall be deemed to have been carrying on their business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of all the respective assets of the Transferor Company and the entire business and undertaking for and on account of, and in trust for, the Transferee Company. The Transferor Company hereby undertake to hold the said assets with utmost prudence until the Effective Date.

15.2 With effect from the date of the Board meeting of the Transferee Company approving the Scheme and up to and including the Effective Date, the Transferor Company shall preserve and carry on their businesses and activities with reasonable diligence and business prudence and shall not, without the prior consent in writing of any of the persons authorized by the Board of Directors of the Transferee Company, undertake any additional financial commitments of any nature whatsoever, borrow any amounts nor incur any other liabilities or expenditure, issue any additional guarantees, indemnities, letters of comfort or commitments or sell, transfer, alienate, charge, mortgage, encumber or otherwise deal with its fixed assets, immovable properties or any part thereof, except in the ordinary course of business, or pursuant to any pre-existing obligation(s) undertaken by the Transferor Company.

15.3 All the profits or income, taxes (including without limitation income tax, advance tax, tax deducted at source and MAT Credit, goods and service tax) or any costs, charges, expenditure accruing or arising to the Transferor Company or expenditure or losses arising or incurred or suffered by the Transferor Company shall for all purposes be treated and deemed to be and accrue as the profits, income, taxes, tax losses, MAT Credit, costs, charges, expenditure or losses of the Transferee Company, as the case may be.

15.4 For the removal of doubt, it is clarified that to the extent there are inter-company loans, deposits, obligation, balances or other outstanding as between the Transferor Company inter-se and/or the Transferee Company, the obligations in respect thereof shall come to an end and there shall be no liability in that behalf and corresponding effect shall be given in the books of account and records of the Transferee Company for the reduction of such assets or liabilities as the case may be.

15.5 The Transferee Company shall be entitled, pending the confirmation of the Scheme, to apply to the Central Government and all other agencies, departments and authorities concerned as are necessary under any law for such consents, approvals and confirmations which the Transferee Company may require to carry on the business of the Transferor Company and to give effect to the Scheme.

16. CANCELLATION OF EQUITY SHARES OF THE TRANSFEROR COMPANY

16.1 The Transferor Company is a wholly-owned subsidiary of the Transferee Company as on the appointed date. Upon the scheme coming into effect, all equity shares of the Transferor Company held by the Transferee Company (either directly or through nominees) constituting the entire paid up share capital of the Transferor Company shall stand cancelled without any further application, act or deed.

16.2 Upon the Scheme becoming effective and with effect from the Appointed Date, in consideration of the transfer and vesting of the Undertaking including all assets and liabilities of the Transferor Company in the Transferee Company in terms of this Scheme, the entire paid up share capital in the Transferor Company fully held by the Transferee Company (either held directly or through and/or its /nominee(s)) shall stand cancelled and extinguished and in lieu thereof, no allotment of any shares in the Transferee Company shall be made to any person whatsoever.

For INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

Director

For Indo Borax & Chemicals Ltd

Company Secretary

17. ACCOUNTING TREATMENT:

In the books of Transferee Company

Upon this entire Scheme coming into effect, the Transferee Company shall account for the amalgamation of the Transferor Company, together, in its books of accounts as per the 'Pooling of Interest Method' in accordance with accounting principles as laid down in Appendix C the Indian Accounting Standard 103 (Business Combinations), notified under Section 133 of the Act read with Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time, in the books of accounts of the Transferee Company such that:

17.1 The Transferee Company shall record the assets and liabilities of the Transferor Company vested in it pursuant to this Scheme, at the carrying values as appearing in the financial statements of the Transferor Company;

17.2 the identity of the reserves of the Transferor Company shall be preserved and the Transferee Company shall record the reserves of the Transferor Company in the same form and at the carrying amount as appearing in the financial statements of the Transferor Company (subject to clauses mentioned below);

17.3 the inter-company balances between the Transferor Company and the Transferee Company, if any, appearing in the books of the Transferee Company and / or the Transferor Company shall stand cancelled with no further obligation in that behalf;

17.4 the value of all the investments held by the Transferee Company in the Transferor Company shall stand cancelled;

17.5 The surplus, if any, arising from the effects of the above clauses shall be transferred to the Capital Reserve in the financial statements of the Transferee Company. In case of a deficit, it will be transferred to a separate reserve titled the Amalgamation Adjustment Deficit Account.;

17.6 In case of any difference in any of the accounting policies between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferee Company will prevail and impact of the same as on the Appointed Date will be quantified and adjusted in "Surplus/Deficit in the Profit and Loss" account of the Transferee Company to ensure that the financial statements of the Transferee Company reflect the financial position based on consistent accounting policies;

17.7 Comparative financial information in the financial statements of the Transferee Company shall be restated for the accounting impact of Scheme, as stated above, as if the amalgamation had occurred from the beginning of the comparative period.

In the books of Transferor Company

The Transferor Company shall stand dissolved without being wound up, upon this Scheme becoming effective, as mentioned in Clause 18 of this Scheme, and all the assets and liabilities as well as reserves shall be transferred to the Transferee Company, on a going concern basis. Hence there is no accounting treatment prescribed under this Scheme in the books of the Transferor Companies.

18. DISSOLUTION OF THE TRANSFEROR COMPANY

Upon the Scheme becoming effective, the Transferor Company shall stand dissolved without being wound up and without any further act or deed.

For INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

Director

For Indo Borax & Chemicals Ltd

Company Secretary

SECTION IV- GENERAL TERMS AND CONDITIONS

19. APPLICATION TO COMPETENT AUTHORITY

19.1. The Amalgamating Company shall make applications and/or petitions under Sections 230 to 232 of the Act and other applicable provisions of the Act to the Competent Authorities for approval of the Scheme and all matters ancillary or incidental thereto, as may be necessary to give effect to the terms of the Scheme.

19.2. Upon this Scheme becoming effective, the shareholders of the Transferee Company shall be deemed to have also accorded their approval under all relevant provisions of the Act for giving effect to the provisions contained in this Scheme.

20. CONDITIONALITY OF THE SCHEME

This Scheme is and shall be conditional upon and subject to:

20.1. The Transferee Company filing the Scheme with the Stock Exchanges in terms of the SEBI Circular;

20.2. The Scheme being approved by the respective requisite majorities of the members and creditors (where applicable) of the Transferor Company and the Transferee Company as per the relevant provisions of the Act or dispensation having been received from the NCLT in relation to obtaining such approval from the shareholders and/or creditors;

20.3. The scheme being sanctioned by the NCLT, either on terms as originally approved by the Companies, or subject to such modifications approved by the NCLT, which shall be in form and substance acceptable to the Companies, each acting reasonably and in good faith;

20.4. Certified or authenticated copies of the orders of the NCLT sanctioning the scheme, being filed by the Transferor Company and the Transferee Company with their respective Registrar of Companies.

21. MODIFICATION OR AMENDMENTS TO THE SCHEME

21.1. The Board of the Amalgamating Companies may make any modifications or amendments to this Scheme at any time and for any reason whatsoever, or which may otherwise be considered necessary, desirable or appropriate. The Board of the Amalgamating Companies may consent to any conditions or limitations that the Tribunal or any other Appropriate Authority may impose.

21.2. For the purposes of giving effect to this Scheme, the Board of the Amalgamating Companies may give such directions including directions for settling any question or difficulty that may arise and such directions shall be binding on all Parties as if the same were specifically incorporated in this Scheme.

22. WITHDRAWAL OF THIS SCHEME, NON-RECEIPT OF APPROVALS AND SEVERABILITY

22.1. Either of the Amalgamating Companies shall be at liberty to withdraw the Scheme, any time before the Scheme is effective.

22.2. In the event of withdrawal of the Scheme under Clause 22.1 above no rights and liabilities whatsoever shall accrue to or be incurred amongst the Amalgamating Companies and/or their respective shareholders or creditors or employees or any other person.

22.3. In the event any of the requisite sanctions and approvals for giving effect to the Scheme not being obtained, the Scheme shall become null and void and no rights and liabilities whatsoever shall accrue to or be incurred amongst the Amalgamating Companies and/or their respective shareholders or creditors or employees or any other person.

For INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

Director

For Indo Borax & Chemicals Ltd

Company Secretary

22.4. In the event of any approvals or conditions enumerated in the Scheme not being obtained or complied with, or for any other reason, the Scheme cannot be implemented, the Boards of Directors of the Transferee Company and the Transferor Company shall mutually waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual agreement, or in case the Scheme not being sanctioned or registered or confirmed by the NCLT, the Scheme shall become null and void and each party shall bear and pay their respective costs, charges and expenses in connection with the Scheme.

23. REPEAL AND SAVINGS

The provisions of the Act shall not be required to be separately complied with, in relation to acts done by the Transferor Company and / or the Transferee Company as per direction or order of the Competent Authority sanctioning this Scheme.

24. COSTS, CHARGES AND EXPENSES

All past, present and future costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) of the Transferor Company and the Transferee Company arising out of or incurred in carrying out and implementing this Scheme or implementation thereof and matters incidental thereto shall be borne by the Transferee Company.

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For INDOBORAX INFRASTRUCTURE PRIVATE LIMITED

Director

For Indo Borax & Chemicals Ltd

Company Secretary